

PRSM ALLERGY FOUNDATION CHARITY PICKLEBALL TOURNAMENT

Official Waiver, Release of Liability, and Informed Consent

Document Version: 1.5 (Updated June 2026) | Event Date: July 18, 2026 (Rain Date: July 19, 2026) | Location: Mt. Vernon High School Courts, Fortville, IN

Purpose: This legally binding document sets forth the comprehensive terms, conditions, and legal rules governing registration, attendance, and physical presence at the Tournament. Please read it thoroughly before executing.

1. DEFINITIONS

"Tournament" means the PRSM Allergy Foundation Charity Pickleball Tournament, including all round-robin pool play, bracket play, check-in, warm-ups, and related operations occurring on July 18, 2026, or the designated rain date of July 19, 2026. **"Released Parties"** refers collectively to the PRSM Allergy Foundation, its direct organizers, founders (including the Eapen brothers), directors, officers, volunteers, private or corporate sponsors, Mt. Vernon High School, the Mt. Vernon Community School Corporation, and all respective employees, agents, contractors, and legal representatives of these entities.

"Premises" explicitly defines the Mt. Vernon High School courts, spectator sidelines, and all surrounding areas under control of the event utilized for Tournament operations.

2. VOLUNTARY PARTICIPATION AND SCOPE

I hereby declare that my registration, attendance, and choice to participate in or observe the Tournament is completely voluntary. No legal or economic duress has been applied to force my presence. I acknowledge that the scope of this waiver applies fully to me whether I am actively participating on the courts as a player, standing or sitting as a spectator, or otherwise entering the designated Premises as a guest.

3. ASSUMPTION OF INHERENT RISKS

I fully understand that entering the Premises and participating in a competitive sports event involves severe inherent risks that cannot be entirely eliminated. These hazards include, but are not limited to: physical contact with other players, hits from moving pickleballs or paddles, slips, trips, falls on the asphalt or specialized court surfaces, heat-related illnesses (exhaustion, dehydration, stroke), sudden cardiac events, muscle strains, bone fractures, and potential exposure to communicable illnesses. I knowingly and voluntarily assume all such risks, both known and unknown, associated with my or my guests' presence and participation.

4. HEALTH CERTIFICATION

I certify and formally declare that I am physically fit, sufficiently trained, and medically capable of participating in this competitive athletic event. I certify that I am medically able to participate or have consulted a physician if appropriate.

5. EMERGENCY MEDICAL AUTHORIZATION

In the event of a medical emergency, injury, or physical collapse during the course of the event, I hereby authorize the Tournament staff, volunteers, or designees to secure urgent medical evaluation, first aid, or emergency medical transportation (including ambulance service) to the nearest medical facility. I explicitly accept full, exclusive financial responsibility for any and all resulting healthcare costs, hospital bills, and medical expenses incurred on my behalf.

6. RELEASE OF LIABILITY

To the maximum extent permitted under Indiana statutory and common law, I hereby completely release, waive, acquit, and forever discharge the Released Parties from any and all liability, claims, demands, actions, or causes of action arising out of or related to any bodily injury, illness, physical disability, or death that I may sustain while participating in, training for, spectating, or traveling to/from the Tournament, regardless of whether caused by the ordinary negligence of the Released Parties or otherwise. This waiver is intended to be as broad and inclusive as permitted under Indiana law.

Exception: This release does not apply to claims arising from gross negligence or willful or wanton misconduct to the extent prohibited by applicable law.

7. COVENANT NOT TO SUE

I solemnly covenant and agree that neither I, nor my personal representatives, estate, heirs, or assigns, will ever initiate, maintain, or participate in any lawsuit, civil action, or formal legal complaint against the Released Parties for any injuries or damages arising out of the activities covered under this document.

8. CLASS ACTION WAIVER

I explicitly agree that any legal dispute, mediation, or proceeding arising under or in connection with this agreement or my participation in the Tournament shall be brought and conducted solely on an individual basis. I knowingly waive the right to initiate, join, or participate as a plaintiff or class member in any class, collective, consolidated, or representative legal action against the Released Parties.

9. INDEMNIFICATION

I agree to defend, indemnify, and hold harmless the Released Parties from and against any and all claims, financial liabilities, losses, damages, legal judgments, court costs, and attorney's fees arising out of my own actions, conduct, omissions, or negligence during the Tournament, including any damage I cause to the high school facilities or injuries I inflict upon another participant, spectator, or guest.

10. INSURANCE DISCLAIMER

I acknowledge and understand that the Tournament organizers maintain supplemental event liability insurance for the event. I further understand that such insurance is limited in scope, is intended primarily to protect against certain liability claims, and does **not** provide comprehensive health, medical, accident, disability, or personal property insurance for participants. I acknowledge that I am solely responsible for maintaining any personal health, accident, or other insurance coverage that I believe is appropriate and for all medical expenses, property damage, or other losses I may incur in connection with my participation in the Tournament.

11. TOURNAMENT RULES AND PARTICIPANT CONDUCT

I agree to strictly adhere to all official Tournament play formats, scoring rules (including specified rally-scoring and side-out rules), standard facility regulations, and directives issued by tournament coordinators. I recognize that the organizers retain the absolute right to disqualify and instantly remove any player, spectator, or guest from the premises, without a refund, for unsafe play, abusive behavior, or unsportsmanlike conduct.

12. WEATHER, DELAYS, AND REFUNDS

I acknowledge and agree to the following operational and financial policies:

- **Severe Weather Policy:** If severe weather prevents safe play on Saturday, July 18th, the tournament or any uncompleted portion of it will shift to the rain date on Sunday, July 19th.
- **Full Cancellation:** If the event is entirely canceled due to weather before pool play begins on both days, registration fees will be refunded in full or converted to a donation to Cincinnati Children's Hospital at the participant's choice.
- **Partial Completion:** If the tournament is started but cannot be completed on either day due to sudden weather or unexpected operational safety hazards, final standings will be mathematically calculated via the point-differential ranking system. No refunds will be issued once pool play has commenced under any circumstances, as fixed overhead costs and event expenses will have already been permanently incurred.

13. EQUIPMENT RESPONSIBILITY

I am solely responsible for providing and inspecting my own personal sports equipment (including my paddle, shoes, protective eyewear, and athletic gear). I confirm that my equipment complies with standard recreation standards and safe physical specifications.

14. PERSONAL PROPERTY DISCLAIMER

I understand that the personal security of my gear, bags, vehicles, and valuables is my sole responsibility. The Released Parties explicitly disclaim all liability for any lost, stolen, misplaced, or physically damaged personal property brought to the Mt. Vernon High School facilities.

15. MEDIA RELEASE

I hereby grant full, irrevocable permission to the PRSM Allergy Foundation and its marketing agents to record, film, and photograph my likeness, voice, name, and performance during the event. I authorize the use of these materials in promotional graphics, website content, social media channels, and public press releases without any expectation of financial compensation or prior review.

16. FINANCIAL ACKNOWLEDGMENT

I explicitly acknowledge that the gross registration fees collected from participants are first used to fully reimburse legitimate, predefined operational costs of the tournament (such as court fees, insurance, and custom medals). All net remaining proceeds are donated to support allergy and immunology research initiatives directly at Cincinnati Children's Hospital. I recognize that registrations and supplemental event donations are not tax-deductible for federal or state income tax purposes.

17. MINOR PARTICIPANT AND GUEST PROVISIONS

If the participant or any accompanying guest is under the age of 18, a parent or legally recognized guardian must provide valid electronic or physical consent during registration. The signing parent or guardian explicitly acknowledges the inherent physical risks of sports participation on behalf of the minor, and formally agrees to waive and release claims on behalf of themselves AND the minor. The guardian further agrees to defend and indemnify the Released Parties from any claims brought by or on behalf of the minor child.

18. GOVERNING LAW AND VENUE

This Agreement, its interpretation, and any legal disputes or claims arising out of its execution shall be governed strictly by the laws of the State of Indiana, without regard to conflict of law principles. Any formal legal actions must be filed exclusively in a court of competent jurisdiction within the State of Indiana.

19. SEVERABILITY

If any singular provision, phrase, or clause of this agreement is deemed unlawful, void, or legally unenforceable by a court of competent jurisdiction, that specific provision shall be severed, and its removal shall not affect the validity, legality, or full binding force of all remaining sections.

20. ENTIRE AGREEMENT

This document constitutes the entire legal agreement between the participant/attendee and the tournament organizers regarding waivers and liability. It completely supersedes any prior oral assurances, text messages, email discussions, or informal promotional text.

21. ELECTRONIC SIGNATURE ACKNOWLEDGMENT

By selecting the acknowledgment box or submitting an electronic registration on the Zeffy ticket checkout platform, I certify that I have read this document completely, understand all its legal implications, and voluntarily agree to every term. I explicitly acknowledge that my electronic verification carries the exact same binding legal weight, validity, and force as a handwritten physical signature.

BY SUBMITTING YOUR ONLINE REGISTRATION, YOU CERTIFY THAT YOU HAVE READ THIS DOCUMENT, FULLY UNDERSTAND THAT YOU ARE WAIVING SUBSTANTIAL LEGAL RIGHTS, AND AGREE TO IT VOLUNTARILY.